

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eliana Behar	Team: Squad #05	CCRB Case #: 202205410	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/13/2022 10:45 PM, Saturday, 08/13/2022 11:10 PM, Saturday, 08/13/2022 11:40 PM, Sunday, 08/14/2022 5:00 AM	Location of Incident: Unknown location; 3754 10th Avenue; 34th Precinct stationhouse	18 Mo. SOL 2/13/2024	Precinct: 34		
Date/Time CV Reported Tue, 08/16/2022 6:23 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 08/16/2022 6:23 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. PO Samantha Wacha	20829	968180	034 PCT
3. SGT Mark Ruppert	02675	954305	034 PCT
4. PO Robert Velsor	01374	955634	034 PCT
5. PO Derek Rivera	03041	966808	034 PCT
6. PO Marvin Marquez	08173	973117	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Lenny Velazquez	29128	973836	FTU 5
2. PO Dennis Wu	30559	973858	FTU 5
3. PO Stephen Tomaszewski	04126	964806	034 PCT
4. PO Juliana Torsiello	29769	973809	FTU 5
5. PO Amanda Wolfe	31441	973853	FTU 5
6. PO Daniel Kim	04816	950682	ESS 02
7. PO Julie Ng	00533	972824	034 PCT
8. PO Anthony Stabile	17519	961323	034 PCT
9. SGT Alberto Alicea	01255	941334	SRG
10. PO Erik Tanquina	25294	973797	FTU 5

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: On August 13, 2022, at an unknown location in Manhattan, officers stopped § 87(2)(b)	A . Officer(s) Unidentified
B . Officers	Abuse: On August 13, 2022, at an unknown location in Manhattan, officers frisked § 87(2)(b)	B . Officer(s) Unidentified
C . PO Robert Velsor	Abuse: On August 13, 2022, at 3754 10th Avenue in Manhattan, Police Officer Robert Velsor searched the vehicle in which § 87(2)(b) was an occupant.	C . Within NYPD Guidelines
D . SGT Mark Ruppert	Abuse: On August 13, 2022, at 3754 10th Avenue in Manhattan, Sergeant Mark Ruppert stopped § 87(2)(b)	D . Within NYPD Guidelines
E . PO Marvin Marquez	Abuse: On August 13, 2022, at the 34th Precinct stationhouse, Police Officer Marvin Marquez did not obtain medical treatment for § 87(2)(b)	E . Unable to Determine

Officer(s)	Allegation	Investigator Recommendation
F . PO Robert Velsor	Abuse: On August 13, 2022, at the 34th Precinct stationhouse, Police Officer Robert Velsor searched the vehicle in which § 87(2)(b) was an occupant.	F . Within NYPD Guidelines
G . PO Derek Rivera	Abuse: On August 13, 2022, at the 34th Precinct stationhouse, Police Officer Derek Rivera searched the vehicle in which § 87(2)(b) was an occupant.	G . Within NYPD Guidelines
H . Officers	Abuse: On August 13, 2022, at the 34th Precinct stationhouse, officers damaged § 87(2)(b)'s property.	H . Officer(s) Unidentified
I . PO Samantha Wacha	Abuse: On August 14, 2022, at the 34th Precinct stationhouse, Police Officer Samantha Wacha did not process § 87(2)(b)'s complaint regarding officers.	I . Unable to Determine
J . SGT Mark Ruppert	Abuse: On August 14, 2022, at the 34th Precinct stationhouse, Sergeant Mark Ruppert did not process § 87(2)(b)'s complaint regarding officers.	J . Unable to Determine
§ 87(4-b), § 87(2)(g)		

Case Summary

On August 16, 2022, § 87(2)(b) filed this complaint on the CCRB website.

On August 13, 2022, at approximately 10:45 p.m., § 87(2)(b) was walking on 10th Avenue in the vicinity of Sherman Creek Park in Manhattan when he was allegedly stopped and frisked by unidentified officers (**Allegations A-B: Abuse of Authority, officer(s) unidentified**). At approximately 11:10 p.m., § 87(2)(b)'s girlfriend, § 87(2)(b) was seated alone inside § 87(2)(b)'s double-parked vehicle at 3754 10th Avenue. Numerous officers were on scene investigating a fatal shooting which had occurred shortly beforehand and approximately one block away from the parked vehicle. PO Robert Velsor of the 34th Precinct approached the vehicle and reached inside to retrieve a pepper spray canister that § 87(2)(b) was sitting atop (**Allegation C: Abuse of Authority, within NYPD guidelines**). § 87(2)(b) approached the scene and Sgt. Ruppert stopped him (**Allegation D: Abuse of Authority, within NYPD guidelines**). The officers transported § 87(2)(b), § 87(2)(b), and their vehicle to the 34th Precinct stationhouse. At approximately 11:40 p.m., at the 34th Precinct stationhouse, PO Marvin Marquez allegedly refused to obtain medical attention for § 87(2)(b) (**Allegation E: Abuse of Authority, unable to determine**). PO Velsor and PO Derek Rivera searched § 87(2)(b)'s vehicle (**Allegation F-G: Abuse of Authority, within NYPD guidelines**). § 87(2)(b) allegedly damaged items inside of the vehicle (**Allegation H: Abuse of Authority, officer(s) unidentified**). After he was released from the stationhouse, at approximately 5 a.m. on August 14, 2023, § 87(2)(b) went to the front desk and requested to file a complaint. PO Samantha Wacha and Sgt. Ruppert allegedly did not let him file a complaint (**Allegations I-J: Abuse of Authority, unable to determine**). § 87(2)(b) was issued two criminal summonses § 87(2)(b), and § 87(2)(b) was issued a summons § 87(2)(b).

§ 87(4-b), § 87(2)(g)

The investigation obtained BWC footage from 11 officers (Board Review 01-14, summarized at Board Review 22-28).

IAB Group 10 conducted a concurrent investigation of this incident, and a request for their investigative case file is pending.

Findings and Recommendations

Allegation (A) Abuse of Authority: On August 13, 2022, at an unknown location in Manhattan, officers stopped § 87(2)(b)

Allegation (B) Abuse of Authority: On August 13, 2022, at an unknown location in Manhattan, officers frisked § 87(2)(b).

§ 87(2)(b) stated that he double parked his vehicle on 10th Avenue and walked to meet his cousins while § 87(2)(b) remained inside the vehicle. There were several NYPD officers on the street, and officers approached him and told him that a shooting had just taken place. They frisked § 87(2)(b) and let him go. § 87(2)(b) did not provide a physical description of these officers, other than that one of the two officers who stopped him was wearing a white shirt. A few minutes later, § 87(2)(b) walked back to his vehicle where he interacted with more officers and was arrested for being a suspect in the shooting (Board Review 15).

The 911 records show that a man was shot in the leg at Dyckman Street and 10th Avenue at 10:55 p.m. The description of the suspected shooter was a dark-skinned black male wearing a white shirt and black pants. Based on the 911 documentation, nine police units were already on scene by 11:09 p.m. (Board Review 16).

The NYPD reported that they could find no BWC footage documenting a prior stop of § 87(2)(b) before the later portion of this incident when he was arrested with § 87(2)(b).

All of the officers interviewed for this case denied that they interacted with § 87(2)(b) at all prior to his arrest.

There are no other 911 events documenting any stops of people around the time frame of when this incident occurred. BWC footage which captures the aftermath of the shooting captures numerous white-shirted officers who responded to the incident location.

The investigation could not locate any Stop Report documenting this alleged stop of § 87(2)(b) (Board Review 41). The investigation also found no record of any officers running a warrant search for § 87(2)(b) in connection with this alleged initial stop (Board Review 42).

§ 87(2)(g)
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§ 87(2)(g). It is therefore recommended that **Allegations A-B** be closed as **officer(s) unidentified**.

Allegation (C) Abuse of Authority: On August 13, 2022, at 3754 10th Avenue in Manhattan, Police Officer Robert Velsor searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that she waited in the front passenger seat of § 87(2)(b)'s double-parked car while § 87(2)(b) went to meet his cousin. While she was waiting, she heard gunshots, saw people running, and then saw officers and an ambulance arrive. A group of officers approached the driver's side window of the vehicle and Sgt. Ruppert asked § 87(2)(b) to lower the window. Sgt. Ruppert asked § 87(2)(b) if she had pepper spray behind her and shined his flashlight into the vehicle. PO Velsor, who was on the passenger side of the vehicle, opened the front passenger door, and asked her what she was trying to hide. PO Velsor noticed a three-inch knife in the center console of the vehicle, grabbed the knife, and then pulled § 87(2)(b) out from the vehicle and placed her in handcuffs (Board Review 42).

PO Velsor's BWC footage (Board Review 01, beginning at 00:50) shows him shining his flashlight into the front passenger window as § 87(2)(b) speaks to Sgt. Ruppert at the driver's window. PO Velsor opens the front passenger door and immediately reaches down to grab an item on which § 87(2)(b) is sitting. There is a hard long red object visible on the seat poking out from underneath her thigh. PO Velsor grabs the item and tells her that she cannot have it. The item cannot be seen clearly in the footage, but it appears to be attached to her key chain. At this point § 87(2)(b) is yelling at PO Velsor that she got this item from a store legally and then begins speaking on her cellphone. PO Velsor is standing outside of the open passenger side door and has his flashlight shining into the vehicle. At 01:33, PO Velsor reaches into the vehicle's center console area, removes a black knife, and places it on the roof of the vehicle. § 87(2)(b) yells that the knife is not hers, and PO Velsor immediately asks § 87(2)(b) to step out of the car and places

her in handcuffs.

PO Velsor testified that § 87(2)(b) was very agitated and yelling while officers were trying to ask her questions about whether she witnessed the shooting. PO Velsor shined his flashlight into the vehicle and saw that § 87(2)(b) was sitting on something that was sticking out from under her thigh. He believed that this item was a knife. He opened the door to the vehicle and pulled the item from under her, and he found that it was a can of pepper spray attached to her key chain which was illegal to possess in New York. He placed the can on top of the vehicle for the officers' safety. PO Velsor continued to shine his flashlight into the vehicle as he stood outside of it. He saw a "raptor" knife that was about 4-5 inches long sticking out of her purse. He removed the knife and placed it on top of the vehicle. Sgt. Ruppert then instructed PO Velsor to remove § 87(2)(b) from the vehicle. PO Velsor placed her in handcuffs and placed her under arrest (Board Review 18).

Sgt. Ruppert testified that he left the shooting victim and followed a blood trail leading north on 10th Avenue, toward the location of § 87(2)(b) double-parked vehicle. He asked § 87(2)(b) if she heard the gun shots and how long she was parked at the location, and she immediately became combative, did not answer his questions, and tried to raise the driver's window. Sgt. Ruppert confirmed that he directed PO Velsor to arrest § 87(2)(b) upon learning that she had pepper spray and a knife in the car (Board Review 17).

Absent probable cause, police can conduct a limited intrusion into a vehicle only if the totality of the information available supports a reasonable conclusion that there is a substantial likelihood of a weapon within the vehicle that poses an actual and specific danger to officers. *People v. Carvey*, 89 N.Y.2d 707 (1997) (Board Review 32).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **within NYPD guidelines**.

Allegation (D) Abuse of Authority: On August 13, 2022, at 3754 10th Avenue in Manhattan, Sergeant Mark Ruppert stopped § 87(2)(b)

§ 87(2)(b) was walking to meet his cousins and received a call from § 87(2)(b) that police officers were at his vehicle. § 87(2)(b) ran back to his vehicle and saw § 87(2)(b) in handcuffs. He asked officers what was going on and an officer placed him in handcuffs and told him that he fit the description of someone for whom they were searching (Board Review 15).

Sgt. Ruppert's BWC footage (Board Review 14, beginning at 01:00), from approximately 10:54 p.m., shows him finding the shooting victim lying in a pool of blood. The victim, who was still alive at that time, is wincing in pain and can barely speak, and he appears to pass in and out of consciousness. He tells Sgt. Ruppert that he was just shot in his upper thigh, and Sgt. Ruppert begins attempting to render medical aid. Sgt. Ruppert continues to attempt to obtain information about the perpetrator, and eventually the man tells him that the shooter was dark-skinned, was wearing a white t-shirt and dark pants, and fled on foot. He does not know the perpetrator. Sgt. Ruppert has difficulty obtaining clear and coherent responses from the victim. At no point does the victim appear to say that the perpetrator had braided hair.

Sgt. Ruppert's later BWC footage (Board Review 06, beginning at 01:30), from approximately 15 minutes after he first located the shooting victim, shows § 87(2)(b) approaching his vehicle which officers have surrounded. The officers have already handcuffed § 87(2)(b). § 87(2)(b) is a dark-skinned black male wearing a white shirt and black pants with braids in his hair. Sgt. Ruppert asks § 87(2)(b) where he is coming from, and § 87(2)(b) tells him that he went to go see his cousin. Immediately, Sgt. Ruppert holds onto § 87(2)(b)'s right arm and tells another male officer that he matches the description, and then Sgt. Ruppert places § 87(2)(b) in handcuffs. Sgt. Ruppert explains to § 87(2)(b) that a shooting just took place in the area and that he matched the description of the shooter. The officers explain to § 87(2)(b) that he will be released if they find that he is not the perpetrator.

Sgt. Ruppert testified that the shooting victim described the shooter as a black man with braided hair wearing a white t-shirt and black pants. Once EMS personnel arrived, Sgt. Ruppert left the victim and continued investigating the incident by backtracking the blood trail, which presumably would lead to the location where the shooting itself took place. While following the blood trail, Sgt. Ruppert saw § 87(2)(b)'s vehicle, which was double-parked and had heavily tinted windows. When § 87(2)(b) returned to the vehicle, Sgt. Ruppert saw that he was a black man wearing a white t-shirt, black pants, and braids. Sgt. Ruppert decided to stop and detain § 87(2)(b) because he matched the description of the shooter. Sgt. Ruppert considered him a suspect of a homicide investigation, and the officers had to transport him to the stationhouse, as the shooting victim was not going to be able to come to the scene to confirm whether § 87(2)(b) was the perpetrator. After transporting § 87(2)(b) to the stationhouse and continuing their investigation, the officers determined that he was not the shooter, and they voided his arrest and released him with a summons § 87(2)(b).

According to *People v. DeBour*, 40 N.Y.2d 201 (1976), an officer can stop an individual when he reasonably suspects that the individual is committing, has committed, or is about to commit a crime (Board Review 13). *People v. Peterson*, 110 A.D. 3d 1103 (2nd Dept., 2013) states that when obtaining reasonable suspicion, officers must consider the similarities in provided descriptions of the defendant, as well as their temporal and spatial proximity to the crime (Board Review 33).

§ 87(2)(g)
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§ 87(2)(g). It is therefore recommended that **Allegation D** be closed as **within NYPD guidelines**.

Allegation (E) Abuse of Authority: On August 13, 2022, at the 34th Precinct stationhouse, Police Officer Marvin Marquez did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) testified that he requested medical attention at multiple points while at the stationhouse. He has asthma, and he had chest pain and shortness of breath while lodged in the cells. At some point during his time in the cells, he told PO Marquez that he needed his inhaler which was inside of his vehicle. PO Marquez said that someone would get the inhaler for him, but no one ever did. § 87(2)(b) then asked if he could go to a hospital for his chest pain, but PO Marquez did not call for an ambulance. § 87(2)(b) further recounted that he asked to go to the hospital numerous times while he was inside the holding cells, and that he asked PO Marquez again at a later point and PO Marquez told him that he was going to be released soon.

§ 87(2)(b) testified that she heard § 87(2)(b) tell PO Marquez that he needed to go to the

hospital at some point while they were in the cells. PO Marquez relayed this information to another unidentified officer, who replied that § 87(2)(b) would be released shortly.

None of the BWC footage captured PO Marquez interacting with § 87(2)(b) at any point during the incident. BWC footage which shows officers bringing § 87(2)(b) into the stationhouse and initially lodging him in the cells does not capture him requesting medical attention or complaining about having any medical issues. The investigation could not obtain stationhouse surveillance footage because it had already expired by the time the investigation became aware of this particular allegation. The only footage showing PO Marquez in the vicinity of § 87(2)(b) at the stationhouse is in PO Erik Tanquina's BWC footage (Board Review 13, beginning at 00:12). It merely shows PO Marquez standing inside of the holding cell room as other officers are removing § 87(2)(b) and § 87(2)(b) from the cells so they can be released. § 87(2)(b) and PO Marquez have no verbal interaction during that time.

PO Marquez, who was not interviewed until approximately eight months after this incident, did not independently recall interacting with § 87(2)(b) in the cells, nor did he recall any prisoners requesting medical attention or having shortness of breath. During the incident time, he was processing another arrest and was in and out of the holding cell area. He testified that typically he will call for an ambulance when a prisoner requests medical attention. After viewing PO Tanquina's BWC footage, PO Marquez was still unable to recall having any interactions with § 87(2)(b) and he maintained that § 87(2)(b) never asked him for medical attention (Board Review 21).

The other interviewed officers (Sgt. Ruppert, PO Rivera, PO Velsor, and PO Wacha) all testified that they did not hear § 87(2)(b) complain of shortness of breath or request for an inhaler or medical attention while at the stationhouse.

§ 87(2)(g)

Therefore, it is recommended that Allegation E be closed as **unable to determine**.

Allegation (F) Abuse of Authority: On August 13, 2022, at the 34th Precinct stationhouse, Police Officer Robert Velsor searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (G) Abuse of Authority: On August 13, 2022, at the 34th Precinct stationhouse, Police Officer Derek Rivera searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (H) Abuse of Authority: On August 13, 2022, at the 34th Precinct stationhouse, officers damaged § 87(2)(b)'s property.

Allegation (I) Abuse of Authority: On August 14, 2022, at the 34th Precinct stationhouse, Police Officer Samantha Wacha did not process § 87(2)(b)'s complaint regarding officers.

Allegation (J) Abuse of Authority: On August 14, 2022, at the 34th Precinct stationhouse, Sergeant Mark Ruppert did not process § 87(2)(b)'s complaint regarding officers.

After being released at approximately § 87(2)(b) § 87(2)(b) retrieved his vehicle from the stationhouse parking lot. He found that one of the tires was flat and alleged that there were holes in the tire. He also alleged that officers had damaged two items inside the vehicle. One of the straps on a set of arm restraints was broken, and a piece of a gold necklace had been chipped off. § 87(2)(b) could not provide any photographs documenting the alleged damage to the arm restraints. He provided "before and after" photos of his necklace, but the photos are too indistinct to see any visible damage to the necklace (Board Review 30). He also provided a photograph of the

alleged holes in his vehicle's tire, which shows some missing rubber near the treads but is not specifically indicative of deliberately caused damage (Board Review 40). After realizing that his property was damaged, § 87(2)(b) went back inside the stationhouse and asked Sgt. Ruppert and PO Wacha, who were at the front desk, if he could make a complaint. Both officers ignored him and did not let him make a complaint (Board Review 15).

There is no BWC footage capturing § 87(2)(b) going back inside the stationhouse after he was released. As noted above, the investigation was unable to obtain stationhouse surveillance footage before it expired.

PO Rivera's BWC footage (Board Review 10, beginning at 01:05) shows that officers searched § 87(2)(b)'s vehicle in the parking lot, removed all the property, and put it into large plastic bags so it could be returned to him. The footage captures the entirety of the vehicle search. The footage does not capture a view of any officer handling the gold necklace or arm restraints. It also does not show an officer damaging a tire, nor at any point does an officer appear to damage any property.

PO Rivera testified that he drove § 87(2)(b)'s vehicle back to the stationhouse and was instructed to do an inventory search of the vehicle with PO Velsor. They removed the property inside the vehicle and brought it inside the stationhouse, with the presumption that § 87(2)(b)'s arresting officer would complete the process of vouchering it (Board Review 18). PO Rivera and PO Velsor both denied damaging any of § 87(2)(b)'s items inside of his vehicle. They did not specifically recall handling § 87(2)(b)'s gold necklace or his arm restraints, but they both denied damaging those items in particular, and they both denied that the vehicle had a flat tire.

Sgt. Ruppert denied that § 87(2)(b)'s vehicle had a flat tire. He recounted that the tire pressure was low at the time the officers took possession of the vehicle. Sgt. Ruppert was not present for the vehicle search. Sgt. Ruppert denied that he had any interactions with § 87(2)(b) after the officers returned his vehicle to him. He did not recall § 87(2)(b) coming back inside the stationhouse and requesting to file a complaint, and he denied that he refused to process his complaint (Board Review 17).

PO Wacha was working as the T/S operator in the stationhouse lobby at the time that § 87(2)(b) was released. She did not recall speaking to § 87(2)(b) during this incident. She stated that part of her role as the T/S operator is to interact with civilians who come in to make complaints, but she did not recall § 87(2)(b) asking to make a complaint (Board Review 20).

According to Patrol Guide Procedure 218-13, when an officer takes a vehicle into custody, an inventory search will be conducted. The interior of the vehicle should be searched thoroughly, and valuables should be removed to be invoiced separately (Board Review 29).

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegation F-G** be closed as **within NYPD guidelines**.

§ 87(2)(g)

§ 87(2)(g)

. Therefore, it is recommended that **Allegation G** be closed as **officer(s) unidentified**.

§ 87(2)(g)

. Therefore, it is recommended that **Allegations H-I** be closed as **unable to determine**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 35).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 35).
- Sergeant Mark Ruppert has been a member of the NYPD for ten years and has been a subject in three CCRB complaints and eight allegations, of which four were substantiated:
 - 201708620 involved substantiated allegations of gun pointed, physical force, refusal to obtain medical treatment, and vehicle pursuit against Sgt. Ruppert. The Board recommended Charges, and Sgt. Ruppert was found not guilty at trial. § 87(2)(g)
- Police Officer Robert Velsor has been a member of the NYPD for ten years and has been a subject in eight CCRB complaints and 19 allegations, of which two were substantiated:
 - 202202655 involved allegations of failure to provide RTKA card and search of person against PO Velsor. The Board recommended Command Discipline A, and the NYPD imposed Command Discipline B. § 87(2)(g)
- Police Officer Marvin Marquez has been a member of the NYPD for one year and this is the first CCRB complaint to which he has been a subject.
- Police Officer Samantha Wacha has been a member of the NYPD for four years and this is the first CCRB complaint to which she has been a party.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.

- As of June 5, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (Board Review 34).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad: 5

Investigator:	<u>Eliana Behar</u>	<u>Inv. Behar</u>	<u>09/18/23</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>September 18, 2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date